

PETITION - YOUTH ACT SET-ASIDE

IN THE COURT

(Superior Court of the District of Columbia, Criminal Division - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

MOTION TO SET ASIDE A CONVICTION UNDER THE YOUTH REHABILITATION ACT, D.C.
CODE Sec. 24-906(E-1)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under D.C. Code Sec. 24-906(e-1); D.C. Code Sec. 24-903(c)(2); D.C. Code Sec. 24-906(e-2) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A youth offender, meaning a person who was 24 or younger at the time of the offense, may move to set aside the conviction after completing probation, incarceration, supervised release, or parole, whichever is later, regardless of whether they were sentenced under the YRA. Discretionary: the court considers the Sec. 24-903(c)(2) factors and makes a written statement on the record of its reasons.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - age at offence] How old were you when the offence happened?

.....

.....

[C2 - supervision completion date] On what date did you finish probation, incarceration, supervised release or parole, whichever came last?

.....

.....

[C3 - case identifiers] What is the case number, and what were you convicted of?

.....

.....

[C4 - rehabilitation facts] In your own words, what have you done since, and why should the court set this conviction aside?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under D.C. Code Sec. 24-906(e-1); D.C. Code Sec. 24-903(c)(2); D.C. Code Sec. 24-906(e-2).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:track-only:DC:dc_yra_set_aside

FILING INSTRUCTIONS - YOUTH ACT SET-ASIDE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Motion to Set Aside a Conviction under the Youth Rehabilitation Act, D.C. Code Sec. 24-906(e-1).

A youth offender, meaning a person who was 24 or younger at the time of the offense, may move to set aside the conviction after completing probation, incarceration, supervised release, or parole, whichever is later, regardless of whether they were sentenced under the YRA. Discretionary: the court considers the Sec. 24-903(c)(2) factors and makes a written statement on the record of its reasons.

WHERE IT GOES

Superior Court of the District of Columbia, Criminal Division

Service and response mechanics are unresolved. Whether the set-aside and the sealing motion are filed together or in sequence is unresolved.

Venue: District of Columbia Superior Court, Criminal Division; one motion per case number in the case being addressed.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee for this route - the record says: "The source review does not state a filing fee for this motion.". The office that answers it is the clerk's office of Superior Court of the District of Columbia, Criminal Division (the venue the registry records for this route: District of Columbia Superior Court, Criminal Division; one motion per case number in the case being addressed.). No committed record states a fee-waiver procedure for this route - the record says: "The source review does not address a fee waiver.". Ask the clerk's office of Superior Court of the District of Columbia, Criminal Division (the venue the registry records for this route: District of Columbia Superior Court, Criminal Division; one motion per case number in the case being addressed.) for its own fee-waiver application.

BEFORE YOU SIGN

The source review does not state a notarization requirement for this motion. Ask the clerk's office of Superior Court of the District of Columbia, Criminal Division whether it requires notarization before you sign or file.

WHO MUST BE SERVED

No committed record this packet binds states a service requirement for this route - the record says: "Unresolved. Service and response mechanics are among the items counsel must confirm.". The office that answers who must be served, and how, is the clerk's office of Superior Court of the District of Columbia, Criminal Division (the venue the registry records for this route: District of Columbia Superior

Court, Criminal Division; one motion per case number in the case being addressed.). Notice: the record says "Unresolved. Service and response mechanics are among the items counsel must confirm.", so the clerk's office of Superior Court of the District of Columbia, Criminal Division (the venue the registry records for this route: District of Columbia Superior Court, Criminal Division; one motion per case number in the case being addressed.) is the office that answers it.

WHAT THE RECORD SAYS YOU MUST KNOW

- A set-aside is not sealing. The person still needs a Sec. 16-806 motion to seal the associated arrest and case records.
- A certificate issues in any case where the conviction is set aside, Sec. 24-906(e-2).
- Related automatic relief: under Sec. 24-906(a) an unconditional discharge of a committed youth offender before expiration of the sentence automatically sets aside the conviction, and under Sec. 24-906(c) automatic set-aside follows early termination of supervised release by the Parole Commission.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The prosecutor files an opposition or the court orders a response.
- The court sets a hearing.
- The record is federal, military, tribal, or from another jurisdiction.
- Immigration, firearm, licensing, security clearance, childcare, healthcare, or law enforcement employment consequences are in play.

THE PAGES IN THIS SET

- dc_yra_set_aside-primary-filing-1: the composed petition, on this route's own statutory ground (Youth Act Set-Aside)

Route: obligation:track-only:DC:dc_yra_set_aside